

Syllabus

HOLGUIN-HERNANDEZ *v.* UNITED STATESCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FIFTH CIRCUIT

No. 18–7739. Argued December 10, 2019—Decided February 26, 2020

A criminal defendant who wants to “preserve a claim of error” for appellate review must first inform the trial judge “of [1] the action the party wishes the court to take, or [2] the party’s objection to the court’s action and the grounds for that objection.” Fed. Rule Crim. Proc. 51(b).

Petitioner Holguin-Hernandez was convicted on drug charges and sentenced to 60 months in prison and five years of supervised release while he was still serving a term of supervised release for an earlier conviction. The Government asked the District Court to impose an additional consecutive prison term of 12 to 18 months for violating the conditions of the earlier term. Petitioner countered that 18 U. S. C. § 3553’s sentencing factors either did not support imposing any additional time or supported a sentence of less than 12 months. The court nonetheless imposed a consecutive 12-month term. Petitioner argued on appeal that this sentence was unreasonably long because it was “‘greater than necessar[y]’ to accomplish the goals of sentencing,” *Kimbrough v. United States*, 552 U. S. 85, 101, but the Fifth Circuit held that he had forfeited that argument by failing to object to the reasonableness of the sentence in the District Court.

Held: Petitioner’s district-court argument for a specific sentence (nothing or less than 12 months) preserved his claim on appeal that the sentence imposed was unreasonably long. A party who informs the court of the “action” he “wishes the court to take,” Rule 51(b), ordinarily brings to the court’s attention his objection to a contrary decision. That is certainly true where, as here, the defendant advocates for a sentence shorter than the one actually imposed. Judges, having in mind their “overarching duty” under § 3553(a) “to ‘impose a sentence sufficient, but not greater than necessary,’ to serve the purposes of sentencing,” would ordinarily understand that a defendant in that circumstance was making the argument that the shorter sentence would be “‘sufficient’” and a longer sentence “‘greater than necessary.’” *Pepper v. United States*, 562 U. S. 476, 493 (quoting § 3553(a)). Nothing more is needed to preserve a claim that a longer sentence is unreasonable. Defendants need not also refer to the “reasonableness” of a sentence. Rule 51 abolished the requirement of making formal “exceptions” to a district court’s decision. And, in any event, reasonableness pertains to the standard of

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“appellate review” of a trial court’s sentencing decision, *Gall v. United States*, 552 U. S. 38, 46 (emphasis added); it is not the substantive standard that trial courts apply under § 3553(a). A defendant who, by advocating for a particular sentence, communicates to the trial judge his view that a longer sentence is “greater than necessary” has thereby informed the court of the legal error at issue in an appellate challenge to the substantive reasonableness of the sentence.

Other issues raised by the Government and *amicus* are not addressed here because they were not considered by the Fifth Circuit. Pp. 173–175. 746 Fed. Appx. 403, vacated and remanded.

BREYER, J., delivered the opinion for a unanimous Court. ALITO, J., filed a concurring opinion, in which GORSUCH, J., joined, *post*, p. 175.

Kendall Turner argued the cause for petitioner. With her on the briefs were *Philip J. Lynch*, *Jeffrey L. Fisher*, *Brian H. Fletcher*, and *Pamela S. Karlan*.

Morgan L. Ratner argued the cause for the United States. With her on the briefs were *Solicitor General Francisco*, *Assistant Attorney General Benczkowski*, *Eric J. Feigin*, and *Francesco Valentini*.

K. Winn Allen, by invitation of the Court, 588 U. S. 919, argued the cause as *amicus curiae* urging affirmance. With him on the brief were *Kasdin M. Mitchell* and *Lauren N. Beebe*.*

JUSTICE BREYER delivered the opinion of the Court.

A criminal defendant who wishes a court of appeals to consider a claim that a ruling of a trial court was in error must first make his objection known to the trial-court judge. The Federal Rules of Criminal Procedure provide two ways of doing so. They say that

“[a] party may preserve a claim of error by informing the court . . . of [1] the action the party wishes the court to take, or [2] the party’s objection to the court’s action

**Chanakya A. Sethi*, *Rakesh N. Kilaru*, *Barbara E. Bergman*, and *Daniel L. Kaplan* filed a brief for the National Association of Criminal Defense Lawyers et al. as *amici curiae* urging reversal.

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and the grounds for that objection.” Fed. Rule Crim. Proc. 51(b).

Errors “not brought to the court’s attention” in one of these two ways are subject to review only insofar as they are “plain.” Rule 52(b); see *United States v. Olano*, 507 U. S. 725, 732–736 (1993).

In this case, a criminal defendant argued in the District Court that the sentencing factors set forth in 18 U. S. C. § 3553(a) did not support imposing any prison time for a supervised-release violation. At the very least, the defendant contended, any term of imprisonment should be less than 12 months long. The judge nevertheless imposed a sentence of 12 months. The question is whether the defendant’s district-court argument for a specific sentence (namely, nothing or less than 12 months) preserved his claim on appeal that the 12-month sentence was unreasonably long. We think that it did.

I

Petitioner in this case, Gonzalo Holguin-Hernandez, was convicted of drug trafficking and sentenced to 60 months in prison and five years of supervised release. At the time of his conviction, he was also serving a term of supervised release related to an earlier crime. The Government asked the court to find that petitioner had violated the conditions of that earlier term, to revoke it, and to impose an additional consecutive prison term consistent with the pertinent Sentencing Guidelines, namely, 12 to 18 months in prison. See United States Sentencing Commission, Guidelines Manual §§ 7B1.4(a), 7B1.3(f) (Nov. 2018).

Petitioner’s counsel argued that there “would be no reason under [18 U. S. C. §] 3553 that an additional consecutive sentence would get [petitioner’s] attention any better than” the five years in prison the court had already imposed for the current trafficking offense. App. 10. She added that petitioner understood that, if he offended again, he was

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“going to serve his life in prison.” *Ibid.* And she urged the court to impose either “no additional time or certainly less than the [G]uidelines.” *Ibid.* At the least, she said, the court should “depart” from the Guidelines, imposing a sentence “below” the applicable range “because it is a substantial sentence and to me overrepresents the role that he played in” the underlying offense. *Ibid.*

The court then imposed a consecutive term of 12 months, a sentence at the bottom of, but not below, the Guidelines range. See *id.*, at 11. The judge indicated that he did not disagree with counsel’s argument, but thought that circumstances justified a greater sentence. He asked counsel if there was “[a]nything further.” *Ibid.* Counsel said that there was not. See *ibid.*

Petitioner appealed, arguing that the 12-month sentence was unreasonably long in that it was “‘greater than necessary’ to accomplish the goals of sentencing.” *Kimbrough v. United States*, 552 U. S. 85, 101 (2007) (quoting 18 U. S. C. § 3553(a)); see also, *e. g.*, *Gall v. United States*, 552 U. S. 38, 49–50 (2007) (noting the District Court’s obligation to “consider all of the § 3553(a) factors to determine” the “appropriate sentence”); 18 U. S. C. § 3583(e) (making these factors applicable in substantial part to proceedings to revoke or modify a term of supervised release). The Court of Appeals held that petitioner had forfeited this argument by failing to “object in the district court to the reasonableness of the sentence imposed.” 746 Fed. Appx. 403 (CA5 2018) (*per curiam*). The court would, of course, consider whether the error petitioner asserted was “plain.” See *ibid.*; Rule 52(b) (permitting review of a plain error “even though it was not brought to the court’s attention”). But it found no plain error, and so it affirmed.

Petitioner sought review in this Court and, in light of differences among the Courts of Appeals, we granted his petition for certiorari. Compare 746 Fed. Appx. 403 with, *e. g.*, *United States v. Curry*, 461 F. 3d 452, 459 (CA4 2006); *United*

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States v. Vonner, 516 F. 3d 382, 389 (CA6 2008) (en banc); *United States v. Castro-Juarez*, 425 F. 3d 430, 433–434 (CA7 2005); *United States v. Sullivan*, 327 Fed. Appx. 643, 645 (CA7 2009); *United States v. Autery*, 555 F. 3d 864, 868–871 (CA9 2009); *United States v. Torres-Duenas*, 461 F. 3d 1178, 1183 (CA10 2006); *United States v. Gonzalez-Mendez*, 545 Fed. Appx. 848, 849, and n. 1 (CA11 2013); *United States v. Bras*, 483 F. 3d 103, 113 (CAD9 2007). Because the Government agrees with petitioner that the Fifth Circuit’s approach is inconsistent with the Federal Rules of Criminal Procedure, we appointed K. Winn Allen to defend the judgment below as *amicus curiae*. He has ably discharged his responsibilities.

II

Congress has instructed sentencing courts to impose sentences that are “‘sufficient, *but not greater than necessary*, to comply with’” (among other things) certain basic objectives, including the need for “just punishment, deterrence, protection of the public, and rehabilitation.” *Dean v. United States*, 581 U. S. 62, 67 (2017) (quoting 18 U. S. C. § 3553(a); emphasis added); see *Pepper v. United States*, 562 U. S. 476, 491, 493 (2011). If the trial court follows proper procedures and gives adequate consideration to these and the other listed factors, then the question for an appellate court is simply, as here, whether the trial court’s chosen sentence was “reasonable” or whether the judge instead “abused his discretion in determining that the § 3553(a) factors supported” the sentence imposed. *Gall*, 552 U. S., at 56; see *United States v. Booker*, 543 U. S. 220, 261–262 (2005).

By “informing the court” of the “action” he “wishes the court to take,” Rule 51(b), a party ordinarily brings to the court’s attention his objection to a contrary decision. See Rule 52(b). And that is certainly true in cases such as this one, where a criminal defendant advocates for a sentence shorter than the one ultimately imposed. Judges, having in mind their “overarching duty” under

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§ 3553(a), would ordinarily understand that a defendant in that circumstance was making the argument (to put it in statutory terms) that the shorter sentence would be “sufficient” and a longer sentence “greater than necessary” to achieve the purposes of sentencing. *Pepper*, 562 U. S., at 493 (quoting § 3553(a)). Nothing more is needed to preserve the claim that a longer sentence is unreasonable.

We do not agree with the Court of Appeals’ suggestion that defendants are required to refer to the “reasonableness” of a sentence to preserve such claims for appeal. See 746 Fed. Appx. 403; *United States v. Peltier*, 505 F. 3d 389, 391 (CA5 2007). The rulemakers, in promulgating Rule 51, intended to dispense with the need for formal “exceptions” to a trial court’s rulings. Rule 51(a); see also Advisory Committee’s 1944 Notes on Fed. Rule Crim. Proc. 51, 18 U. S. C. App., p. 591. They chose not to require an objecting party to use any particular language or even to wait until the court issues its ruling. Rule 51(b) (a party may “infor[m] the court” of its position either “when the court ruling or order is made or” when it is “sought”). The question is simply whether the claimed error was “brought to the court’s attention.” Rule 52(b). Here, it was.

The Court of Appeals properly noted that, to win on appeal, a defendant making such a claim must show that the trial court’s decision was not “reasonable.” *Gall*, 552 U. S., at 56. But that fact is not relevant to the issue here. Our decisions make plain that reasonableness is the label we have given to “the familiar abuse-of-discretion standard” that “applies to *appellate* review” of the trial court’s sentencing decision. *Id.*, at 46 (emphasis added); see *Kimbrough*, 552 U. S., at 90–91; *Rita v. United States*, 551 U. S. 338, 351 (2007); *Booker*, 543 U. S., at 261. The substantive standard that Congress has prescribed for *trial* courts is the “parsimony principle” enshrined in § 3553(a). *Dean*, 581 U. S., at 67; see *Pepper*, 562 U. S., at 491. A defendant who, by advocating for a particular sentence, communicates to the trial judge his

ALITO, J., concurring

view that a longer sentence is “greater than necessary” has thereby informed the court of the legal error at issue in an appellate challenge to the substantive reasonableness of the sentence. He need not also refer to the standard of review.

III

The Government and *amicus* raise other issues. They ask us to decide what is sufficient to preserve a claim that a trial court used improper *procedures* in arriving at its chosen sentence. And they ask us to decide when a party has properly preserved the right to make particular arguments supporting its claim that a sentence is unreasonably long. We shall not consider these matters, however, for the Court of Appeals has not considered them. See, *e. g.*, *Tapia v. United States*, 564 U. S. 319, 335 (2011); *Cutter v. Wilkinson*, 544 U. S. 709, 718, n. 7 (2005). We hold only that the defendant here properly preserved the claim that his 12-month sentence was unreasonably long by advocating for a shorter sentence and thereby arguing, in effect, that this shorter sentence would have proved “sufficient,” while a sentence of 12 months or longer would be “greater than necessary” to “comply with” the statutory purposes of punishment. 18 U. S. C. § 3553(a).

The judgment of the Court of Appeals is vacated, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE ALITO, with whom JUSTICE GORSUCH joins, concurring.

I agree with the Court that a defendant who requests a specific sentence during a sentencing hearing need not object to the sentence after its pronouncement in order to preserve a challenge to its substantive reasonableness (*i. e.*, length) on appeal. I write to emphasize what we are not deciding.

ALITO, J., concurring

First, we do not decide “what is sufficient to preserve a claim that a trial court used improper *procedures* in arriving at its chosen sentence.” *Ante*, at 175. That question is not currently before us. Nevertheless, as we have previously explained, failing to object at all to a procedural error (*e. g.*, a district court’s miscalculation of the Guidelines range) will subject a procedural challenge to plain-error review. *Molina-Martinez v. United States*, 578 U.S. 189, 193–194 (2016).

Second, we do not decide what is sufficient to preserve any “particular” substantive-reasonableness argument. *Ante*, at 175. Again, the question here “is simply whether the claimed error was ‘brought to the court’s attention.’” *Ante*, at 174 (quoting Fed. Rule Crim. Proc. 52(b)). Thus, we do not suggest that a generalized argument in favor of less imprisonment will insulate *all* arguments regarding the length of a sentence from plain-error review. The plain-error rule serves many interests, judicial efficiency and finality being chief among them. See *Puckett v. United States*, 556 U.S. 129, 134–135 (2009). Requiring a party to bring an error to the attention of the court enables the court to correct itself, obviating the need for an appeal. At the very least, the court can explain its reasoning and thus assist the appellate process. A court cannot address particular arguments or facts not brought to its attention.

Third, we do not decide whether this petitioner properly preserved his particular substantive-reasonableness arguments, namely, that he did not pose a danger to the public and that a 12-month sentence would not serve deterrence purposes. See *ante*, at 171–172, 175. In determining whether arguments have been preserved, courts should make a case-specific assessment of how the error was “brought to the court’s attention.” Rule 52(b); see also, *e. g.*, *United States v. Vonner*, 516 F.3d 382, 392 (CA6) (en banc) (“While we do not require defendants to challenge the ‘reasonableness’ of their sentences in front of the district court, we surely should

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apply plain-error review to any arguments for leniency that the defendant does not present to the trial court”), cert. denied, 555 U. S. 816 (2008). On remand, the Fifth Circuit can decide whether petitioner preserved these specific arguments and whether the sentence was substantively unreasonable.

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INTEL CORPORATION INVESTMENT POLICY
COMMITTEE ET AL. *v.* SULYMACERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 18–1116. Argued December 4, 2019—Decided February 26, 2020

The Employee Retirement Income Security Act of 1974 (ERISA) requires plaintiffs with “actual knowledge” of an alleged fiduciary breach to file suit within three years of gaining that knowledge, 29 U. S. C. § 1113(2), rather than within the 6-year period that would otherwise apply. Respondent Sulyma worked at Intel Corporation from 2010 to 2012 and participated in two Intel retirement plans. In October 2015, he sued petitioners—administrators of those plans—alleging that they had managed the plans imprudently. Petitioners countered that the suit was untimely under § 1113(2) because Sulyma filed it more than three years after they had disclosed their investment decisions to him. Although Sulyma had visited the website that hosted many of these disclosures many times, he testified that he did not remember reviewing the relevant disclosures and that he had been unaware of the allegedly imprudent investments while working at Intel. The District Court granted summary judgment to petitioners under § 1113(2). The Ninth Circuit reversed. That court agreed with petitioners that Sulyma could have known about the investments from the disclosures, but held that his testimony created a dispute as to when he gained “actual knowledge” for purposes of § 1113(2).

Held: A plaintiff does not necessarily have “actual knowledge” under § 1113(2) of the information contained in disclosures that he receives but does not read or cannot recall reading. To meet § 1113(2)’s “actual knowledge” requirement, the plaintiff must in fact have become aware of that information. Pp. 184–190.

(a) ERISA’s “plain and unambiguous statutory language” must be enforced “according to its terms.” *Hardt v. Reliance Standard Life Ins. Co.*, 560 U. S. 242, 251. Although ERISA does not define the phrase “actual knowledge,” its meaning is plain. Dictionaries confirm that, to have “actual knowledge” of a piece of information, one must in fact be aware of it. Legal dictionaries give “actual knowledge” the same meaning. The law will sometimes impute knowledge—often called “constructive” knowledge—to a person who fails to learn something that a reasonably diligent person would have learned. The addition of “actual” in § 1113(2) signals that the plaintiff’s knowledge must be more than hypothetical. Congress has repeatedly drawn the same “linguistic distinc-

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tion,” *Merck & Co. v. Reynolds*, 559 U. S. 633, 647, elsewhere in ERISA. When Congress has included both actual and constructive knowledge in ERISA limitations provisions, Congress has done so explicitly. But Congress has never added to § 1113(2) the language it has used in those other provisions to encompass both forms of knowledge. Pp. 184–187.

(b) Petitioners’ arguments for a broader reading of § 1113(2) based on text, context, purpose, and statutory history all founder on Congress’s choice of the word “actual.” Petitioners may well be correct that heeding the plain meaning of § 1113(2) substantially diminishes the protection that it provides for ERISA fiduciaries. But if policy considerations suggest that the current scheme should be altered, Congress must be the one to do it. Pp. 187–189.

(c) This opinion does not foreclose any of the “usual ways” to prove actual knowledge at any stage in the litigation. *Farmer v. Brennan*, 511 U. S. 825, 842. Plaintiffs who recall reading particular disclosures will be bound by oath to say so in their depositions. Actual knowledge can also be proved through “inference from circumstantial evidence.” *Ibid.* And this opinion does not preclude defendants from contending that evidence of “willful blindness” supports a finding of “actual knowledge.” Cf. *Global-Tech Appliances, Inc. v. SEB S. A.*, 563 U. S. 754, 769. Pp. 189–190.

909 F. 3d 1069, affirmed.

ALITO, J., delivered the opinion for a unanimous Court.

Donald B. Verrilli, Jr., argued the cause for petitioners. With him on the briefs were *Ginger D. Anders*, *Jordan D. Segall*, *John J. Buckley, Jr.*, *Daniel F. Katz*, *Vidya Atré Mirmira*, *David Kurtzer-Ellenbogen*, *Juli Ann Lund*, and *Tanya Abrams*.

Matthew W. H. Wessler argued the cause for respondent. With him on the brief were *Jonathan E. Taylor*, *Gregory Y. Porter*, and *Joseph A. Creitz*.

Matthew Guarnieri argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief were *Solicitor General Francisco*, *Deputy Attorney General Kneedler*, and *G. William Scott*.*

**Mark A. Perry*, *Matthew S. Rozen*, *Peter C. Tolsdorf*, *Leland P. Frost*, *Kevin Carroll*, and *Daryl Joseffer* filed a brief for the National Association of Manufacturers et al. as *amici curiae* urging reversal.

Briefs of *amici curiae* urging affirmance were filed for AARP et al. by *Paul Blankenstein*, *Dara S. Smith*, and *William Alvarado Rivera*;

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JUSTICE ALITO delivered the opinion of the Court.

The Employee Retirement Income Security Act of 1974 (ERISA) requires plaintiffs with “actual knowledge” of an alleged fiduciary breach to file suit within three years of gaining that knowledge rather than within the 6-year period that would otherwise apply. § 413(a)(2)(A), 88 Stat. 889, as amended, 29 U. S. C. § 1113. The question here is whether a plaintiff necessarily has “actual knowledge” of the information contained in disclosures that he receives but does not read or cannot recall reading. We hold that he does not and therefore affirm.

I

A

Retirement plans governed by ERISA must have at least one named fiduciary, § 1102(a)(1), who must manage the plan prudently and solely in the interests of participants and their beneficiaries, § 1104(a). Fiduciaries who breach these duties are personally liable to the plan for any resulting losses. § 1109(a). ERISA authorizes participants and their beneficiaries, as well as co-fiduciaries and the Secretary of Labor, to sue for that relief. § 1132(a)(2).

Such suits must be filed within one of three time periods, each with different triggering events. The first begins when the breach occurs. Specifically, under § 1113(1), suit must be filed within six years of “the date of the last action which constituted a part of the breach or violation” or, in cases of breach by omission, “the latest date on which the fiduciary could have cured the breach or violation.” We have referred to § 1113(1) as a statute of repose, which “effect[s] a legislative judgment that a defendant should be free from liability after the legislatively determined period of time.” *California Public Employees’ Retirement System v.*

and for the Pension Rights Center by *Elizabeth Hopkins* and *Karen W. Ferguson*.

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ANZ Securities, Inc., 582 U. S. 497, 505 (2017) (internal quotation marks omitted).

The second period, which accelerates the filing deadline, begins when the plaintiff gains “actual knowledge” of the breach. Under § 1113(2), suit must be filed within three years of “the earliest date on which the plaintiff had actual knowledge of the breach or violation.” Section 1113(2) is a statute of limitations, which “encourage[s] plaintiffs to pursue diligent prosecution of known claims.” *Id.*, at 504 (internal quotation marks omitted).

The third period, which applies “in the case of fraud or concealment,” begins when the plaintiff discovers the alleged breach. § 1113. In such cases, suit must be filed within six years of “the date of discovery.” *Ibid.*

B

Respondent Sulyma worked at Intel Corporation from 2010 to 2012. He participated in two Intel retirement plans, the Intel Retirement Contribution Plan and the Intel 401(k) Savings Plan. Payments into these plans were in turn invested in two funds managed by the Intel Investment Policy Committee.¹ These funds mostly comprised stocks and bonds. After the stock market decline in 2008, however, the committee increased the funds’ shares of alternative assets, such as hedge funds, private equity, and commodities. These assets carried relatively high fees. And as the stock market rebounded, Sulyma’s funds lagged behind others such as index funds.

Sulyma filed this suit on behalf of a putative class in October 2015, alleging primarily that the committee and other plan administrators (petitioners here) had breached their fiduciary duties by overinvesting in alternative assets. Petitioners countered that the suit was untimely under

¹Specifically the Intel Global Diversified Fund, in which his retirement contribution plan was automatically invested, and the Intel Target Date 2045 Fund, which he chose for his 401(k) plan.

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§ 1113(2). Although Sulyma filed it within six years of the alleged breaches, he filed it more than three years after petitioners had disclosed their investment decisions to him.

ERISA and its implementing regulations mandate various disclosures to plan participants. See generally 29 U. S. C. §§ 1021–1031; see also *Gobeille v. Liberty Mut. Ins. Co.*, 577 U. S. 312, 321–323 (2016). Sulyma received numerous disclosures while working at Intel, some explaining the extent to which his retirement plans were invested in alternative assets. In November 2011, for example, he received an e-mail informing him that a Qualified Default Investment Alternative (QDIA) notice was available on a website called NetBenefits, where many of his disclosures were hosted. See App. 149–151; see also 29 CFR §§ 2550.404c–5(b) through (d) (2019) (QDIA notices); § 2520.104b–1(c) (regulating electronic disclosure). This notice broke down the percentages at which his 401(k) fund was invested in stocks, bonds, hedge funds, and commodities. See App. 236. In 2012, he received a summary plan description explaining that the funds were invested in stocks and alternative assets, *id.*, at 227, and referring him to other documents—called fund fact sheets—with the percentages in graphical form. See 29 U. S. C. §§ 1022, 1024(b) (summary plan descriptions); see also App. 307 (June 2012 fact sheet for his 401(k) plan fund); *id.*, at 338 (June 2012 fact sheet for his retirement contribution plan fund); *id.*, at 277–340 (other fact sheets provided during his tenure at Intel). Also in 2012, he received e-mails directing him to annual disclosures that petitioners provided for both his plans, which showed the underlying funds’ return rates and again directed him to the NetBenefits site for further information. See 29 CFR § 2550.404a–5; see also App. 242–243 (retirement contribution plan annual disclosure); *id.*, at 250–251 (401(k) plan annual disclosure).

Petitioners submitted records showing that Sulyma visited the NetBenefits site repeatedly during his employment. *Id.*, at 258–276. But he testified in his deposition that he

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did not “remember reviewing” the above disclosures during his tenure. *Id.*, at 175; see also *id.*, at 183, 193, 196–197. He also stated in a declaration that he was “unaware” while working at Intel “that the monies that [he] had invested through the Intel retirement plans had been invested in hedge funds or private equity.” *Id.*, at 212. He recalled reviewing only account statements sent to him by mail, which directed him to the NetBenefits site and noted that his plans were invested in “short-term/other” assets but did not specify which. See, e.g., *id.*, at 375.

The District Court granted summary judgment to petitioners under §1113(2), reasoning that “[i]t would be improper to allow Sulyma’s claims to survive merely because he did not look further into the disclosures made to him.” 2017 WL 1217185, *9 (ND Cal., Mar. 31, 2017). The Ninth Circuit reversed. As relevant here,² the court construed “actual knowledge” to mean “what it says: knowledge that is actual, not merely a possible inference from ambiguous circumstances.” 909 F.3d 1069, 1076 (2018) (internal quotation marks omitted). Although Sulyma “had sufficient information available to him to know about the allegedly imprudent investments” more than three years before filing suit, the court held that his testimony created a dispute as to when he actually gained that knowledge. *Id.*, at 1077.

Several Circuits have likewise construed §1113(2) to require “knowledge that is actual,” *id.*, at 1076, but one has construed it to require only proof of sufficient disclosure.³

²The court also addressed the separate question of what exactly a plaintiff must actually know about a defendant’s conduct and the relevant law in order for §1113(2) to apply. That question is not before us and we do not address it.

³Compare *Caputo v. Pfizer, Inc.*, 267 F.3d 181, 194 (CA2 2001); *Reich v. Lancaster*, 55 F.3d 1034, 1056–1057 (CA5 1995); *Gluck v. Unisys Corp.*, 960 F.2d 1168, 1176 (CA3 1992); *Radiology Center, S. C., v. Stifel, Nicolaus & Co.*, 919 F.2d 1216, 1222 (CA7 1990); *Brock v. Nellis*, 809 F.2d 753, 754–755 (CA11 1987), with *Brown v. Owens Corning Investment Review Comm.*, 622 F.3d 564, 571 (CA6 2010) (“Actual knowledge does not require

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We granted certiorari, 587 U.S. 1050 (2019), to resolve whether the phrase “actual knowledge” does in fact mean “what it says,” 909 F.3d, at 1076, and hold that it does.

II

A

“We must enforce plain and unambiguous statutory language” in ERISA, as in any statute, “according to its terms.” *Hardt v. Reliance Standard Life Ins. Co.*, 560 U.S. 242, 251 (2010). Although ERISA does not define the phrase “actual knowledge,” its meaning is plain. Dictionaries are hardly necessary to confirm the point, but they do. When Congress passed ERISA, the word “actual” meant what it means today: “existing in fact or reality.” Webster’s Seventh New Collegiate Dictionary 10 (1967); accord, Merriam-Webster’s Collegiate Dictionary 13 (11th ed. 2005); see also American Heritage Dictionary 14 (1973) (“In existence; real; factual”); *id.*, at 18 (5th ed. 2011) (“Existing in reality and not potential, possible, simulated, or false”). So did the word “knowledge,” which meant and still means “the fact or condition of being aware of something.” Webster’s Seventh New Collegiate Dictionary, at 469; accord, Merriam-Webster’s Collegiate Dictionary, at 691; see also American Heritage Dictionary 725 (1973) (“Familiarity, awareness, or understanding gained through experience or study”); *id.*, at 973 (2011) (same). Thus, to have “actual knowledge” of a piece of information, one must in fact be aware of it.

Legal dictionaries give “actual knowledge” the same meaning: “[r]eal knowledge as distinguished from presumed knowledge or knowledge imputed to one.” Ballentine’s Law Dictionary 24 (3d ed. 1969); accord, Black’s Law Dictionary 1043 (11th ed. 2019) (defining “actual knowledge” as “[d]irect

proof that the individual Plaintiffs actually saw or read the documents that disclosed the allegedly harmful investments” (internal quotation marks omitted)).

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and clear knowledge, as distinguished from constructive knowledge”).⁴ The qualifier “actual” creates that distinction. In everyday speech, “actual knowledge” might seem redundant; one who claims “knowledge” of a topic likely means to suggest that he actually knows a thing or two about it. But the law will sometimes impute knowledge—often called “constructive” knowledge—to a person who fails to learn something that a reasonably diligent person would have learned. See *id.*, at 1043. Similarly, we held in *Merck & Co. v. Reynolds*, 559 U. S. 633 (2010), that the word “discovery,” when used in a statute of limitations without qualification, “encompasses not only those facts the plaintiff actually knew, but also those facts a reasonably diligent plaintiff would have known.” *Id.*, at 648. The addition of “actual” in § 1113(2) signals that the plaintiff’s knowledge must be more than “potential, possible, virtual, conceivable, theoretical, hypothetical, or nominal.” Black’s Law Dictionary 53 (4th ed. 1951). Indeed, in *Merck*, we cited § 1113(2) as evidence of the “linguistic distinction” between “‘*actual knowledge*’” and the “hypothetical” knowledge that a reasonably diligent plaintiff would have. 559 U. S., at 646–647 (quoting § 1113(2); emphasis in original).

Congress has drawn the same distinction elsewhere in ERISA. Multiple provisions contain alternative 6-year and 3-year limitations periods, with the 6-year period beginning at “the date on which the cause of action arose” and the

⁴Petitioners cite this dictionary’s somewhat puzzling second definition of “actual knowledge,” which it dubs “implied actual knowledge”: “[k]nowledge of information that would lead a reasonable person to inquire further.” Black’s Law Dictionary, at 1043. Not even this entry, however, appears to equate “implied actual knowledge” with “actual knowledge” as normally understood. It instead proceeds to reference the common-law “discovery rule,” *ibid.*, under which a limitations period begins when “the plaintiff discovers (or reasonably *should have* discovered) the injury giving rise to the claim,” *id.*, at 585 (emphasis added); see also *Merck & Co. v. Reynolds*, 559 U. S. 633, 646 (2010). As we noted in *Merck*, that rule is broader than “*actual knowledge*.” *Id.*, at 647.

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3-year period starting at “the earliest date on which the plaintiff acquired *or should have acquired* actual knowledge of the existence of such cause of action.” §§ 1303(e)(6), (f)(5) (emphasis added); accord, §§ 1370(f)(1)–(2), 1451(f)(1)–(2). ERISA also requires plaintiffs challenging the suspension of benefits under § 1085 to do so within “one year after the earliest date on which the plaintiff acquired or should have acquired actual knowledge of the existence of such cause of action.” § 1085(e)(9)(I)(iv). Thus, Congress has repeatedly drawn a “linguistic distinction” between what an ERISA plaintiff actually knows and what he should actually know. *Merck*, 559 U. S., at 647. And when Congress has included both forms of knowledge in a provision limiting ERISA actions, it has done so explicitly. We cannot assume that it meant to do so by implication in § 1113(2). Instead we “generally presum[e] that Congress acts intentionally and purposely when it includes particular language in one section of a statute but omits it in another.” *BFP v. Resolution Trust Corporation*, 511 U. S. 531, 537 (1994) (internal quotation marks omitted).

Petitioners dispute the characterization of anything less than actual knowledge as constructive knowledge, arguing that the latter term usually refers to information that a plaintiff must seek out rather than information that is sent to him. But if a plaintiff is not aware of a fact, he does not have “actual knowledge” of that fact however close at hand the fact might be. § 1113(2). And Congress has never added to § 1113(2) the language it has used in other ERISA limitations provisions to encompass both what a plaintiff actually knows and what he reasonably could know.

As presently written, therefore, § 1113(2) requires more than evidence of disclosure alone. That all relevant information was disclosed to the plaintiff is no doubt *relevant* in judging whether he gained knowledge of that information. See Part III, *infra*. To meet § 1113(2)’s “actual knowledge”

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requirement, however, the plaintiff must in fact have become aware of that information.

B

Petitioners offer arguments for a broader reading of § 1113(2) based on text, context, purpose, and statutory history. All founder on Congress’s choice of the word “actual.”

As for text, petitioners do not dispute the normal definitions of “actual,” “knowledge,” or “actual knowledge.” They focus instead on the least conspicuous part of the phrase “had actual knowledge”: the word “had.” § 1113(2). Once a plaintiff receives a disclosure, they argue, he “ha[s]” the knowledge that § 1113(2) requires because he effectively holds it in his hand. *Ibid.* In other words, he has the requisite knowledge because he could acquire it with reasonable effort. That turns § 1113(2) into what it is plainly not: a constructive-knowledge requirement.

Petitioners’ contextual argument fails for the same reason. As they point out, ERISA’s disclosure regime is meant to “ensur[e] that ‘the individual participant knows exactly where he stands with respect to the plan.’” *Firestone Tire & Rubber Co. v. Bruch*, 489 U. S. 101, 118 (1989) (quoting H. R. Rep. No. 93–533, p. 11 (1973)). This is the reason for ERISA’s requirements that disclosures be written for a lay audience. See, e. g., 29 U. S. C. § 1022(a). Once plan administrators satisfy their obligations to impart knowledge, petitioners say, § 1113(2)’s knowledge requirement is satisfied too. But that is simply not what § 1113(2) says. Unlike other ERISA limitations periods—which also form § 1113(2)’s context—§ 1113(2) begins only when a plaintiff actually is aware of the relevant facts, not when he should be. And a given plaintiff will not necessarily be aware of all facts disclosed to him; even a reasonably diligent plaintiff would not know those facts immediately upon receiving the disclosure. Although “the words of a statute must be read in

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their context,” *Davis v. Michigan Dept. of Treasury*, 489 U. S. 803, 809 (1989), petitioners’ argument again gives the word “actual” little meaning at all.

Petitioners also argue that § 1113(2)’s plain meaning undermines its purpose of protecting plan administrators from suits over bygone investment decisions. If a plan participant can simply deny knowledge, they say, administrators will rarely get the benefit of § 1113(2). But even if this is true, as it may well be, we cannot say that heeding the clear meaning of the word “actual” renders the statute so “[in]coherent” that it must be disregarded. *Kingdomware Technologies, Inc. v. United States*, 579 U. S. 162, 171 (2016).

For one thing, plan participants are not the only potential plaintiffs subject to § 1113. The Secretary of Labor, for example, may also sue imprudent fiduciaries for the benefit of plan participants. See § 1132(a)(2). And the United States represents that the Secretary will have a hard time doing so within § 1113(2)’s timeframe if deemed to have actual knowledge of the facts contained in the many reports that the Department receives from ERISA plans each year. See Brief for United States as *Amicus Curiae* 27–28. Moreover, the statute’s repose period will still protect defendants from suits filed more than six years after the alleged breach. See § 1113(1).

Petitioners may well be correct that heeding the plain meaning of § 1113(2) substantially diminishes the protection that it provides for ERISA fiduciaries, but by the same token, petitioners’ interpretation would greatly reduce § 1113(1)’s value for beneficiaries, given the disclosure regime that petitioners themselves emphasize. Choosing between these alternatives is a task for Congress, and we must assume that the language of § 1113(2) reflects Congress’s choice. If policy considerations suggest that the current scheme should be altered, Congress must be the one to do it. See, *e. g.*, *Azar v. Allina Health Services*, 587 U. S. 566, 582–583 (2019).